

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2925

By: Pittman

AS INTRODUCED

An Act relating to high-speed vehicular pursuits; directing law enforcement agencies to adopt certain policies and procedures; requiring policies and procedures to include specific requirements for motor vehicle pursuits, fleeing felons, and misdemeanants; providing restrictions when engaging in vehicular pursuits; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.6 of Title 22, unless there is created a duplication in numbering, reads as follows:

A. Each state, county, and local law enforcement agency shall adopt written policies and procedures concerning the high-speed pursuit of fleeing suspects. All high-speed pursuit policies and procedures created or adopted by a law enforcement agency shall address situations in which high-speed pursuits cross over into other jurisdictions. The policies and procedures shall also include the following:

1. As it relates to motor vehicle pursuits:

- a. prohibiting or limiting high-speed pursuits in densely populated areas,
- b. prohibiting the shooting of firearms at moving vehicles,
- c. other standards consistent with public policy that aim to protect innocent persons when pursuing alleged violent criminals,
- d. requiring prior supervisory approval before initiating high-speed pursuits, and
- e. emphasizing alternative methods of pursuit including, but not limited to, aircraft support via helicopters, unmanned aircraft systems or drones, or Global Positioning System (GPS) trackers;

2. As it relates to the pursuit of alleged felons, regardless of the manner of pursuit:

- a. requiring that law enforcement officers pursue a person only when there is a reasonable certainty that apprehension of the person will prevent further physical harm to other individuals or the officer,
- b. requiring that a pursuit end if significant property damage or harm to individuals seems probable, and
- c. prohibiting shooting at a fleeing individual who presents no immediate harm to an officer or any other person; and

1 3. As it relates to the pursuit of alleged misdemeanants, the
2 person may only be pursued if the officer is reasonably certain to
3 apprehend the person without damage to public property or harm to
4 innocent persons.

5 B. No state, county, or local law enforcement agency shall
6 authorize the engagement of a high-speed vehicular pursuit unless
7 probable cause exists to believe that the person being pursued
8 committed, or is committing:

- 9 1. Murder;
- 10 2. Aggravated assault and battery;
- 11 3. Kidnapping, false imprisonment, or a related offense;
- 12 4. Rape;
- 13 5. Armed robbery; or
- 14 6. Any other offense that creates an immediate threat of death
15 or serious bodily injury to another person or a substantial threat
16 to the safety of another person.

17 SECTION 2. This act shall become effective November 1, 2025.

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